

File number: DOS-2022-00861

Subject: Complaint against an external service for prevention and protection at work (SEPPT) – legality of the use of an independent prevention advisor and consequences regarding the principle of legality (Article 5.1. a) and 6 of the GDPR) – exercise of the allegedly excessive right of access (Article 12.5. of the GDPR)

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, president, and Messrs. Yves Pouillet and Christophe Boeraeve, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";

Considering the Law of December 3, 2017, establishing the Data Protection Authority (hereinafter "LCA");

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

Mr. X, hereinafter referred to as "the complainant."

The defendant: The SEPPT, represented by Me Olivier Scheuer and Me Grégory Sorreaux, lawyers, whose office is located at Place Poelaert, 6, 1000 Brussels;

Hereinafter referred to as "the defendant."

1 The new internal regulations of the DPA, following the amendments made by the Law of December 25, 2023, amending the Law of December 3, 2017, establishing the Data Protection Authority (LCA), came into effect on 01/06/2024. In accordance with Article 56 of the Law of December 25, 2023, it only applies to complaints, mediation files, requests, inspections, and procedures before the Contentious Chamber initiated from that date: <https://www.autoriteprotectiondonnees.be/publications/reglement-d-ordre-interieur-de-l-autorite-de-protection-des-donnees.pdf> Files initiated before 01/06/2024 [as in this case] are subject to the provisions of the LCA not amended by the Law of December 25, 2023, and the internal regulations as they existed before that date.

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I. Facts and procedure

1. On February 24, 2022, the complainant filed a complaint with the Data Protection Authority (DPA) against the defendant.

2. The defendant is an external service for prevention and protection at work (SEPPT) governed by the "Well-being Law" and Book II, Title 3 of the Code of Well-being at Work relating to the external service for prevention and protection at work.

3. The defendant is the SEPPT chosen by a Higher Education Institution.

4. The complainant is a teacher at this Higher Education Institution.

5. In February 2021, the complainant sought the services of the defendant following incidents of harassment he claims to have been a victim of within the Higher Education Institution. He submitted a formal request for psychosocial intervention to the defendant.

6. On March 9, 2021, the complainant was informed that his request (as well as others previously submitted) would be handled by Ms. Z1 (hereinafter Ms. Z1).

7. In August 2021, Ms. Z1 co-signed, in her capacity as an independent prevention advisor, at the request of the defendant, an opinion following the complainant's request for psychosocial intervention with two other prevention advisors from the defendant.

8. On October 13, 2021, the complainant contacted the data protection officer (DPO) of the defendant.

In his email, the complainant stated that he noticed that his request had been partially handled by Ms. Z1, who has not worked for the defendant since 2017. The complainant believes that by doing so, the defendant violated the prohibition on subcontracting the examination of requests such as the one he submitted. He requested to be informed about how his data is processed and stored both by the defendant and by Ms. Z1. He also requested to know what data is retained by each party and to receive a copy of it. He specified that if he did not receive a response, he would notify and/or file a complaint with the DPA.

9. On October 14, 2021, the defendant suspended its intervention regarding the complainant's requests for psychosocial interventions (the one from February 2021 mentioned in point 5 was preceded and followed by other requests as will be explained further in the decision) for the following reasons:

"We have taken note of the various complaints you have submitted to our services and our prevention advisors regarding psychosocial aspects. You have also informed us that you had

2 The Law of August 4, 1996, concerning the well-being of workers in the execution of their work, M.B., September 18, 1996.

3 Code of Well-being at Work, M.B., June 2, 2017.

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the intention to file a complaint with the Public Prosecutor and possibly also with the Data Protection Authority. All of this in addition to the procedure already pending before the Labor Court.

In this context, you will understand that it is impossible for us to still guarantee our independence in handling the cases you would like to submit to us. Therefore, we have decided to suspend any examination of intervention initiated at your request within the framework of our competence regarding psychosocial risks. (...)

10.

In the complaint he filed with the DPA against the defendant on February 24, 2022, the complainant denounces:

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on the one hand, the lack of response given by the defendant to his request of October 13, 2021 (point 8);

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on the other hand, the illegality of the communication of personal data concerning him by the defendant to an independent prevention advisor, external to its services, namely Ms. Z1. The use of subcontracting for this type of mission being prohibited according to the complainant, the communication of personal data concerning him to this independent advisor for the purpose of carrying out this mission is also tainted with illegality. The complainant further questions the existence of a subcontracting agreement required by Article 28 of the GDPR.

11.

On February 25, 2022, the complaint is declared admissible by the First Line Service (SPL) of the DPA based on Articles 58 and 60 of the LCA and transmitted to the Contentious Chamber under Article 62, § 1 of the LCA.

12.

On March 24, 2022, in accordance with Article 96, § 1 of the LCA, the request from the Contentious Chamber to conduct an investigation is transmitted to the Inspection Service (SI).

13.

On September 13, 2022, the investigation by the SI is closed, the investigation report is attached to the file and transmitted by the general inspector to the President of the Contentious Chamber (art. 91, § 1 and § 2 of the LCA).

14.

The SI report concludes that there is an "absence of a blatant violation of the GDPR" (page 18 of the report) based on the following findings:

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The use of an independent prevention advisor is generally a legally accepted practice. The labor

inspection has validated the use of an independent psychologist [read Ms. Z1] to manage the complainant's case, particularly in light of the complainant's hostile attitude towards the defendant's staff.

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The SI understands that by multiplying hostile messages towards the defendant, the complainant has created the conditions that led to the absence of a response to his request of October 13, 2021. As the saying goes, adds the SI, "No one can take advantage of their own wrongdoing."

15.

On June 27, 2023, the Contentious Chamber decides, under Article 95, § 1, 1° and Article 98 of the LCA, that the file can be processed on the merits.

16.

On the same date, the parties are informed by registered mail of the provisions set out in Article 95, § 2 as well as Article 98 of the LCA. They are also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions regarding the grievances arising from a potential violation of Articles 5.1 a), 6.1, and 12 of the GDPR. The deadline for receiving the defendant's response conclusions is set for August 24, 2023, for the complainant's reply conclusions on September 14, 2023, and for the defendant's reply conclusions on October 6, 2023.

17.

On June 30, 2023, the defendant requests a copy of the file (art. 95, §2, 3° LCA), which is transmitted to him on July 4, 2023.

18.

On July 30, 2023, the complainant in turn requests a copy of the file (art. 95, §2, 3° LCA), which is transmitted to him on August 7, 2023.

19.

On August 23, 2023, the Contentious Chamber receives the response conclusions from the defendant. The defendant having submitted summary conclusions, their arguments are summarized in points 22 and following below.

20. On September 12, 2023, the Contentious Chamber receives the reply conclusions from the complainant.

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Regarding the grievance concerning the violation of Articles 5.1 a) and 6.1 of the GDPR, the complainant denounces the illegality of Ms. Z1's intervention in light of the Well-being Law (Article 42, paragraph 2) and consequently, the fact that she could not have access to his personal data.

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Regarding Article 12 of the GDPR, the complainant states that it has been violated since the defendant did not respond to his request of October 13, 2021 (point 8). The complainant contests any abusive recourse to the various procedures he initiated, including his request of October 13, 2021, an abuse that would justify the defendant's lack of response.

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The complainant also introduces through his conclusions an "incidental request for violation of Articles 5.1 d) and 5.1 f) of the GDPR" under Article 809 of the Judicial Code.

4 Article 5.1 d) and f) of the GDPR: Personal data must be: (...) d) accurate and, where necessary, kept up to date; all reasonable measures must be taken to ensure that personal data that are inaccurate, with regard to the purposes for which they are processed, are erased or rectified without delay (accuracy); (...) f) processed in a manner that ensures appropriate security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, using appropriate technical or organizational measures (integrity and confidentiality).

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21.

On October 6, 2023, the Contentious Chamber received the summary conclusions of the defendant.

22.

In general, the defendant highlights the particularly contentious and litigious context in which the complainant's complaint is situated. The defendant emphasizes that the complainant does not resort to procedures in a responsible manner, whether regarding those he has initiated concerning worker welfare or those provided for by the GDPR.

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Regarding the alleged unlawfulness of the processing in light of Articles 5.1. a) and 6 of the GDPR: the defendant concludes that this grievance lacks legal basis and that, in support of Article 42 paragraph 2 of the Welfare Act, the engagement of Ms. Z1 as an independent prevention advisor was lawful.

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Regarding the alleged violation of Article 12 of the GDPR, the defendant acknowledges that it did not respond to the complainant's request of October 13, 2021 (point 8). However, it argues that this omission is not culpable since the complainant's request was abusive.

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Regarding the alleged violation of Articles 5.1. d) and 5.1. f) of the GDPR, the defendant states that this request is inadmissible, as the framework of the procedure is strictly defined and outlined in the letter from the Contentious Chamber dated June 27, 2023 (points 15-16). It emphasizes that Article 809 of the Judicial Code invoked by the complainant is, moreover, not applicable to the case at hand.

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The defendant concludes that in light of the above elements, the Contentious Chamber should declare a lack of jurisdiction or, alternatively, simply note a failure without sanction.

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The defendant further requests that, given its activity as well as the image and function of a SEPPT, the decision of the Contentious Chamber, should it acknowledge any violation on its part (which it does not), not be published. If such a decision must be published, the defendant requests that it be done in an anonymized manner.

Article 809 of the Judicial Code (C.J.): "Among the parties involved, incidental requests are made by conclusions, filed with the registry, and sent to the other parties, as stated in Articles 742 to 746." This article must be read in conjunction with Article 807 of the C.J. to understand its scope. Article 807 of the C.J.: "The request before the judge may be extended or modified if the new conclusions, taken contradictorily, are based on a fact or act invoked in the citation, even if their legal qualification is different."

5 For completeness, the Contentious Chamber notes that the defendant also emphasizes that the complainant would not be seeking a finding of violation of Article 12 of the GDPR.

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II. Motivation

II.1. Regarding the Quality of the Defendant

23.

The Disciplinary Chamber notes that the defendant is a non-profit organization established as an external service for prevention and protection at work (SEPPT) within the meaning of Article 40 of the Well-being Act.

24.

Employers are obligated to promote the well-being of their workers and must adopt appropriate preventive measures to avert psychosocial risks at work. This obligation also entails the creation of an internal service for prevention and protection at work. Employers may also call upon external services for prevention and protection at work (SEPPT) such as the defendant.

25.

Furthermore, the employer must establish procedures allowing a worker who believes they have suffered a psychosocial risk to request either an informal psychosocial intervention or a formal psychosocial intervention. When an SEPPT is involved, as in this case, these requests for intervention can be directly submitted to a prevention advisor from this external service. This SEPPT can, as will be explained below, also call upon an independent prevention advisor. In response to the request for psychosocial intervention, the prevention advisor drafts an opinion, intended for the employer,

recommending the adoption of individual measures concerning the requesting individual (such as the complainant in this case) or the implementation of collective measures.

26.

Although the defendant is contractually engaged with the employer of the complainant (namely with the Higher Education Institution), the defendant had the obligation to carry out its legal missions independently. Its status as a data controller arises from the missions assigned to it by the regulations concerning well-being at work. The defendant is thus a data controller within the meaning of Article 4.7 of the GDPR. The Disciplinary Chamber

6 The complainant indicates in their defense that the defendant has made slanderous and other defamatory statements against them; the Disciplinary Chamber specifies for all practical purposes that it is not competent to hear offenses such as slander or defamation in the sense of the Penal Code.

7 Art. 40.- § 1. External services for Prevention and Protection at work are established. These services have one or more prevention advisors. § 3. The King determines the conditions and modalities under which an external service referred to in §§ 1 and 2 may be accredited. He also sets the rules regarding its organization, missions, and legal status, as well as those concerning the competencies of prevention advisors.

8 Article 5 of the Well-being at Work Act.

9 Article 32/2, §2, paragraph 3 of the Well-being at Work Act.

10 See the aforementioned Well-being Act.

11 "Data Controller": the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of processing; where the purposes and means of such processing are determined by Union law or the law of a Member State, the data controller may be designated or the specific criteria applicable to its designation may be provided for by Union law or the law of a Member State.

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reminds that a public authority is in principle responsible for the processing of data necessary for the implementation of the public interest mission that it is entrusted with (or which falls under the public authority it is invested with)¹², or necessary for the legal obligation that binds it¹³, under the relevant standard. It further emphasizes the conformity of this analysis with the recent ruling of the Court of Justice of the European Union (CJEU) of January 11, 2024.¹⁴

II.2. Regarding the alleged unlawfulness of the communication of data relating to the complainant to Madame Z1 (Articles 5.1. a) and 6.1 of the GDPR)

II.2.1. Position of the SI

27. As mentioned in point 14, the SI is of the opinion that "the use of an independent prevention advisor is in principle a legally accepted practice. The Labor Inspection (SPF Economy¹⁵) has validated the use of an independent psychologist (specifically a former employee of the SEPPT (read the defendant)) to manage the case of Mr. X (read the complainant), particularly in light of the hostile attitude of the latter towards the staff of the SEPPT (read the defendant)."

28. The SI's report cites in support of its finding an excerpt from the letter dated July 15, 2022, addressed by the SPF Employment, Labor and Social Consultation (SPF ETCS) to the defendant: "In the context of the problems encountered with Mr. X (read the complainant), calling on an independent prevention advisor with whom you have such a lasting relationship could be a solution to address the latest request for formal intervention" (page 18 of the investigation report).

29. The SI concludes "that it does not have elements establishing a clear violation of the GDPR regarding the facts that were the subject of its investigation."

II.2.2. Position of the parties

Position of the complainant

30. In his complaint, the complainant denounces the unlawful use by the defendant of an external independent prevention advisor (in the person of Madame Z1), this "subcontracting" being prohibited according to him.

¹² Article 6, 1., e), of the GDPR.

¹³ Article 6, 1., c), of the GDPR.

14 Case C-231/22, Belgian State (Data processed by an official journal), ECLI:EU:C:2024:7.

15 It should be read as "SPF Employment, Labor and Social Consultation" and not "SPF Economy," as the document to which the SI refers indeed originates from the SPF Employment, Labor and Social Consultation (SPF ETCS) and not from the SPF Economy.

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31.

In his response conclusions, the complainant argues that, in any event, following the defendant's assertion that the use of an external prevention advisor would be legally permitted (see below, points 37 and following), the guarantees required in the case of engaging an independent prevention advisor are, in any case, not satisfied in this instance.

32.

Firstly, the complainant indicates in this regard that the requirement, as a guarantee, of a valid and lasting agreement between the defendant and the said external prevention advisor being called upon, namely Ms. Z1 as an independent prevention advisor, is not met.

33. The complainant notes in this respect that:

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the collaboration agreement dated December 21, 2020, produced by the defendant, was made between her and the SRL ABCD, represented by Ms. Z1, whereas Ms. Z1 is not qualified to represent this company according to the articles of association of said company, for which she would only be an external consultant. The complainant denounces the usurpation by Ms. Z1 of the status of manager of this company, the agreement being therefore, in his view, a forgery. Assuming that the agreement of December 21, 2020, has legal existence, which he disputes, the complainant emphasizes that the condition of a lasting agreement between the defendant and the independent prevention advisor she calls upon is, in any case, not satisfied since there is no direct link between the defendant and Ms. Z1.

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The confidentiality agreement dated February 13, 2020, produced by the defendant, mentions that it is an annex to the collaboration agreement of the same date (February 13, 2020), which agreement, not produced, does not exist according to the complainant. The annex alone therefore has no legal value. The complainant emphasizes that on the date of February 13, 2020, the corporate purpose of the company ABCD had not yet been modified and did not include anything related to the provision of psychologist or external prevention advisor services, which therefore taints the confidentiality agreement with illegality in any case.

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The confidentiality agreement dated November 29, 2021, produced by the defendant, also mentions that it constitutes an annex to a collaboration agreement whose date is not mentioned and which, according to the complainant, does not exist any more than that of February 13, 2020, mentioned above. The annex alone here again has no value.

16 Regarding the letter from the SPF ETCS dated July 15, 2022, on which the SI relies to validate the use of an independent prevention advisor, the complainant concludes that it is clever on the part of the defendant to make it seem that it is the intervention of Ms. Z1 that is concerned in this regard. He adds that, in reality, this letter is a consequence of the defendant's refusal on October 14, 2021, to continue examining his requests (see point 9 of the statement of facts). This letter therefore refers to a request he would have submitted in May 2022, also handled by a distinct independent prevention advisor from Ms. Z1.

17 The complainant emphasizes that the modification of the articles of association occurred ..., that is, after the signing of the agreements of 2020. The company would also have no NACEBEL code.

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legal. Furthermore, it is subsequent to her request of October 13, 2021, and therefore cannot be taken into account regarding the defendant's appeal to Ms. Z1 in March 2021.

In addition to the accusations of forgery concerning the collaboration agreement of December 21, 2020 (see above), the complainant believes that in urgency, following the request he submitted on October 13, 2021, the defendant has clearly attempted to regularize her appeal to Ms. Z1 by signing this

incomplete agreement. He adds that he does not rule out the possibility that the defendant may produce the missing backdated agreements in her next submissions.

34. Regarding the letter from the SPF ETCS dated July 15, 2022, on which the SI relies to validate the appeal to an independent prevention advisor, the complainant denounces that contrary to the conditions set by the SPF in this letter, he was not informed either of the sharing, nor of the content of the sharing, nor of the persons with whom this sharing would take place, and in any case did not give his consent to it. He believes that according to the email from the defendant dated March 9, 2021 (point 6), Ms. Z1 was misleadingly presented to him as a colleague of the prevention advisors who are staff members of the defendant to whom his request had initially been entrusted, and not as an independent prevention advisor. He therefore claims he was never properly informed nor did he consent to the sharing of his data with her, thus excluding any lawful basis for processing his data under Article 6.1. a) of the GDPR.

35. The complainant then dismisses each of the other lawful bases under Article 6.1 of the GDPR for the following reasons:

- Regarding the contract (Article 6.1. b) of the GDPR), the complainant emphasizes the absence of a contract between Ms. Z1 and the defendant on one hand, and between Ms. Z1 and her employer on the other hand;
- Regarding the legal obligation (Article 6.1. c) of the GDPR), the complainant insists that the use of an independent prevention advisor such as Ms. Z1 is prohibited by law. The hypothesis of a legal obligation does not therefore apply;
- The complainant also excludes a vital interest on his part (Article 6.1.d) of the GDPR);
- Regarding the public interest mission (Article 6.1. e) of the GDPR), the complainant believes that, on the contrary, the management of his request has been privatized since it was entrusted to the SRL ABCD or to Ms. Z1;
- Finally, the complainant also dismisses the legitimate interest of the defendant in communicating his data to Ms. Z1 (Article 6.1. f) of the GDPR), extensively refuting any "exhaustion" of the internal prevention advisors at the defendant due to his multiple requests, which exhaustion would have justified the appeal to an independent prevention advisor.

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36. Finally, the complainant also criticizes the lack of independence on the part of Ms. Z1 and her "collusion" with Master Z2, counsel for his employer (namely the Higher Education Institution), in violation of the rules according to which the prevention advisor must perform their function in complete independence.

Position of the defendant

37. The defendant justifies her position that she could, legally, resort to Ms. Z1 as an independent prevention advisor, based on the following elements:

- No legal provision prohibits a SEPPT from collaborating with an independent prevention advisor external to its staff.
- The preparatory works of Book II, Title 3 of the Code of Well-being at Work concerning the SEPPT expressly authorize the use of an independent prevention advisor in these terms:
"The prevention advisor may be linked to the external service for prevention and protection at work [SEPPT] by an employment contract, but may also provide his services as an independent."
- The authorized doctrine also confirms that the prevention advisor of a SEPPT does not necessarily have to be bound by an employment contract or a status and can also be an independent.
- The interpretation given to Article 42, paragraph 2 of the Well-being Law by the administration on the SPF ETCS website confirms that the SEPPT can collaborate with independents in these terms:
"Article 42, paragraph 2 of the law states that 'the external service (...) must establish a contractual relationship with the prevention advisor to whom it is called in order to provide sufficient guarantees for achieving a sustainable collaboration between the employer and the prevention advisor.'

In this provision, two relationships come into play, namely the relationship of the prevention advisor with the external service on one hand and the relationship of the prevention advisor with the employer who calls upon this external service on the other hand. Regarding the relationship with the external

service, the explanatory note of the...

18 Doc. Parl, Ch., 50 2033/0001, p. 11 (page 6 of the defendant's summary conclusions). It is the Contentious Chamber that emphasizes this.

19 The defendant cites the author K. Van den Langenbergh without further details (page 7 of the defendant's summary conclusions).

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The reasoning specifies that prevention advisors may be part of the external service staff or be independent. (...) »20.

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In the letter dated July 15, 2022 (also cited by the SI – see above point 14), the SPF ETCS confirms to the defendant the legality of the SEPPT's recourse to an independent prevention advisor.

“(...) we confirm that an external service for prevention and protection at work can call upon an independent prevention advisor”21.

38. Regarding the arguments presented by the complainant concerning the respect of the conditions governing the recourse to an independent prevention advisor, the defendant emphasizes the following:

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The complainant was informed as early as March 2021 that his request would be handled by Ms. Z1 without this information provoking any reaction, let alone opposition from him, which only manifested once the opinion was rendered in response to his request for intervention.

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The complainant's challenge to the regularity of the collaboration agreement concluded by the defendant with SRL ABCD, as well as the status of Ms. Z1 within this SRL, falls under corporate law, regarding which the APD does not have the competence to rule.

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Without prejudice to its position above, the defendant specifies that in any case:

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it concluded a collaboration agreement with SRL ABCD in December 2020 and then in November 2021; agreements that it submits to the file. The defendant also indicates that it is producing two confidentiality agreements concluded with SRL ABCD in February 2020 and in November 2021.

o

the administrator of SRL ABCD, Mr. C., ratified the signature of these agreements by Ms. Z1.

o

Ms. Z1 acted legally as the manager of the company SRL ABCD.

o

the Commission of Psychologists did not see any principle objection to Ms. Z1 exercising her profession through a company (see the emails exchanged between Ms. Z1 and the Commission of Psychologists – document 12 of the defendant's file).

20 Page 7 of the defendant's summary conclusions. It is the Contentious Chamber that emphasizes this.

21 It is the Contentious Chamber that emphasizes this.

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II.2.3. Assessment of the Contentious Chamber

39. The Contentious Chamber recalls that pursuant to Article 5.1 a) of the GDPR (lawfulness, fairness, transparency), any processing of data must be lawful.

40. This requirement of lawfulness means that the processing of personal data must be carried out in accordance with all applicable legal rules. This implies not only compliance with data protection rules and the mobilization of a lawful basis as defined in Article 6.1 of the GDPR but also, for example, compliance with obligations under labor law, contract law, consumer protection, professional secrecy, or non-discrimination rules. The processing of personal data, even authorized under one of the lawful bases provided for in Article 6.1 of the GDPR, cannot contravene applicable law.

41.

In this case, the Contentious Chamber is of the opinion that the defendant could rely on Article 6.1 e) of the GDPR²² to communicate to Ms. Z1 the personal data concerning the complainant necessary for her to process the psychosocial intervention request made by him as an independent prevention advisor.

42.

The defendant is indeed entrusted with the execution of a public interest mission, based on a legal basis²³.

43. The Contentious Chamber notes that the activity of a SEPPT such as the defendant is regulated by the "Well-being Law" and the "Well-being Code," as previously mentioned. The missions entrusted to it by the legislator aim, among other things, to prevent psychosocial risks at work. More generally, the SEPPT is expected to assist the employer in ensuring and improving the health, safety, and well-being of its workers. For these reasons, this mission can be qualified as being in the public interest.

44. Regarding the quality of the legal basis that entrusts it, the Contentious Chamber recalls Recital 41 of the GDPR, which states that, "when this regulation refers to a legal basis or to a legislative measure, this does not necessarily mean that the adoption of a legislative act by a parliament is required, without prejudice to the obligations provided for under the constitutional order of the concerned Member State. However, this legal basis or legislative measure should be clear and precise, and its application

22 Article 6.1.e) of the GDPR states that "processing is lawful only if it is necessary for the performance of a task carried out in the public interest" or in the exercise of official authority vested in the controller.

23 The controller must, in accordance with Article 6.3.b) of the GDPR read in light of Recitals 41 and 45, be entrusted with the execution of a public interest mission or in the exercise of official authority under a legal basis, whether in EU law or in the law of the Member State.

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should be foreseeable for the parties involved, in accordance with the case law of the Court of Justice of the European Union (CJEU) and the European Court of Human Rights (ECHR) »²⁴.

45. The processing of personal data falling under the hypothesis of Article 6.1. e) of the GDPR is not necessarily explicitly mentioned by the said provision as is the case with the hypothesis of Article 6.1. c), but must, in order to be covered by Article 6.1 e) of the GDPR, contribute to the achievement of the public interest mission entrusted or to the exercise of public authority.

46. The requirement of foreseeability nonetheless implies that certain constitutive elements of the processing must be included in the legal basis, including the purpose of the processing, namely, in the case at hand, the examination of the request for formal psychosocial intervention. The Contentious Chamber is of the opinion that, in this regard, the Well-being Act is sufficiently explicit in that it provides (1) for the establishment of procedures directly accessible to the worker who believes they are suffering harm within the meaning of Article 32/1, allowing them to request, as in this case, a formal psychosocial intervention (Article 32/2.2 of the Well-being Act), (2) specific provisions related to acts of moral harassment (notably, as those of which the complainant claims to be a victim (Article 32 nonies)), and (3) a section specifically dedicated to the communication of information and access to documents from which it follows that a certain number of personal data of an applicant (such as the complainant in this case) will necessarily be processed for the purpose of examining their request for intervention with the SEPPT by internal prevention advisors or, as in this case, by an independent partner advisor²⁵ (access to the complaint, limits on the right of access – Article 32 quaterdecies and following (Article 32 septiesdecies)).

47.

Regarding the requirement of necessity (the processing is lawful only if and to the extent that it is necessary for the execution of the public interest mission), data controllers wishing to invoke Article 6.1.e) of the GDPR must weigh the necessity of the processing for the public interest mission they pursue against the interests of the individuals concerned.

48. In this case, the Contentious Chamber considers that the communication of personal data relating to the complainant necessary for the execution by Ms. Z1 of the public interest mission of the defendant could occur since she had, in full legality (see points 52 and following), chosen to engage

this latter as an independent advisor. This power granted to her by law necessarily allows the defendant to communicate to an independent prevention advisor

24 It is the Contentious Chamber that emphasizes this.

25 See below regarding this.

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the data of a requester (here the complainant) necessary for the examination of the latter's request. Just as the requester's data is necessary for the defendant to internally process the said request for psychosocial intervention, so too is the communication of this data to the independent advisor Z1, whom the defendant is authorized to call upon, justified.

49. Regarding the necessity of communicating certain data related to the complainant to Ms. Z1, the Disciplinary Chamber adds that under the present procedure, the complainant has indeed denounced the illegality of resorting to an independent advisor (and consequently the communication of data concerning him to her) without challenging the communication of any specific data concerning him, for example, on the grounds of irrelevance. However, since the defendant did not grant him access to the data concerning him that had actually been communicated to Ms. Z1 (which the defendant does not contest (point 63)), the Disciplinary Chamber is of the opinion that the complainant was not in a position to do so. The Disciplinary Chamber recalls in this regard that regardless of the legal qualification given to Ms. Z1 by the defendant²⁶, only the data necessary for the fulfillment of her mission could be communicated to her.

50. In support of the above, the Disciplinary Chamber therefore does not share, regardless of the qualification of Ms. Z1 as indicated above, the complainant's analysis according to which the defendant should have, under Article 6.1. a) of the GDPR, obtained his consent for the communication of data concerning him to Ms. Z1. Indeed, the SPF ECTS does recall in its letter of July 15, 2022, that in cases where sharing confidentiality proves necessary, it can only occur in compliance with the following conditions: (1) obtaining the consent of the person concerned; (2) sharing information only with other persons bound by professional secrecy; (3) sharing information only with other professionals pursuing the same mission; (4) sharing only the strictly necessary or useful information.

51. Contrary to what the complainant asserts, his consent to this sharing, assuming it is necessary²⁷, does not constitute the basis of legality for the communication of data concerning him by the defendant to Ms. Z1 within the meaning of Article 6.1.a) of the GDPR. As previously stated, the Disciplinary Chamber is of the opinion that the communication to Ms. Z1 of data relating to the complainant was based, provided that only the data necessary for processing his formal request for psychosocial intervention had been communicated to her, on Article 6.1. e) of the GDPR.

26 The Disciplinary Chamber notes that in her responses to the questions posed by the Inspection, the defendant qualified Ms. Z1 as a subcontractor. This qualification not having been included in the referral to the Disciplinary Chamber, it does not rule on this matter.

27 See the opinion 101/2024 of the APD which specifies that shared professional secrecy and its conditions apply among healthcare professionals pursuing a care mission for the patient and excluding, for example, control medicine.

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52.

Now, concerning the compliance with the law regarding the use of an independent prevention advisor (Ms. Z1), the Disciplinary Chamber is of the opinion that, indeed, it does not fall within its primary competence to assess the defendant's adherence to the prohibitions/obligations that would apply to her in execution of the Well-being Act (alleged prohibition on the use of an independent prevention advisor, conditions of such use) or corporate law (notably the regularity of the agreements concluded by the defendant to frame her collaboration with Ms. Z1), just as it would not for the competent courts and tribunals that would be directly seized of these questions and the application of the applicable standards.

53. On the other hand, it is incumbent upon the Disciplinary Chamber, given the oversight of the principle of legality (Articles 5.1. a) and 6.1 of the GDPR as explained above) entrusted to it by the Belgian and European legislators, to verify compliance with these prohibitions/obligations and other

legal obligations weighing on the defendant insofar as this proves relevant to the exercise of its competencies.²⁸

54. The Disciplinary Chamber notes in this regard that Article 42, paragraph 2 of the Well-being Act provides that "The external service for prevention and protection at work must establish a contractual relationship with the prevention advisor it calls upon in order to provide sufficient guarantees for achieving a sustainable collaboration between the employer and the prevention advisor."

55. The Disciplinary Chamber is of the opinion that while this provision may not appear clear-cut, the preparatory works invoked by both the defendant and the SPF ETCS indicate without any ambiguity that the use of an independent prevention advisor is authorized under this provision²⁹. Additionally, this practice is validated by the SPF ETCS on its website³⁰ as well as in its letter dated July 15, 2022 (also pointed out by the SI (points 14 and 28)). Regarding this, the Disciplinary Chamber is of the opinion that the question of whether the letter of July 15, 2022, from the SPF ETCS constitutes a response to the complainant's requests from February 2021 or May 2022, addressed by

28 See in this sense §§ 109 and following of the binding decision 04/2022 of December 5, 2022, European Data Protection Committee (EDPB) Binding Decision 4/2022 regarding the dispute submitted by the Irish supervisory authority concerning Meta Platforms Ireland Limited and its Instagram service (Article 65 of the GDPR): https://www.edpb.europa.eu/system/files/2024-04/edpb_binding_decision_202204_ie_sa_meta_instagramservice_redacted_fr.pdf. See in particular § 112: "The EDPB agrees that supervisory authorities do not have, under the GDPR, broad and general competence in contractual matters. However, the EDPB considers that the oversight missions conferred to supervisory authorities by the GDPR imply a limited competence to assess the general validity of a contract insofar as it is relevant for the fulfillment of their missions under the GDPR."

29 Doc. Parl. Ch, 50 2033/001, p. 11: <https://www.lachambre.be/kvvcr/showpage.cfm?section=flwb&language=fr&cfm=/site/wwwcfm/flwb/flwbn.cfm?dossierID=2033&legislat=50&inst=K>;: Exposé des motifs du projet de loi concernant le bien-être des travailleurs lors de l'exécution de leur travail (Doc. Parl, Ch.rep., sess. ext. 1995, 71/1, page 28 <https://www.lachambre.be/FLWB/PDF/49/0071/49K0071001.pdf>

30 <https://emploi.belgique.be/fr/themes/bien-etre-au-travail/structures-organisationnelles/le-conseiller-en-prevention/statut->
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Madam Z1 or by another independent prevention advisor is indifferent. Indeed, what the Disciplinary Chamber retains from this correspondence is that it attests to the possibility for the defendant to resort to an independent prevention advisor. These are elements that the Disciplinary Chamber takes into account. Furthermore, the Disciplinary Chamber does not have any elements allowing it to conclude that the use of an external prevention advisor would be prohibited by law.

56. As for the complainant's arguments regarding the illegality of collaboration agreements not perfectly compliant with corporate law, the Disciplinary Chamber rejects these defenses.

57.

It notes that in this case:

- an "independent collaboration agreement" dated December 21, 2020, between the defendant and Ms. Z1 is produced by the defendant;
- in its Article 1 (subject of the agreement), it is provided that Ms. Z1, whose qualification as a psychologist trained for this role is not contested, shall provide certain services as a psychosocial prevention advisor;
- this collaboration has resulted in the delivery of an opinion regarding the formal request of the complainant;
- this collaboration is ongoing, with Article 6 of the agreement stipulating that it is concluded for an indefinite duration starting from January 1, 2021, which is prior to the complainant's request for psychosocial intervention in February 2021;
- indeed, the defendant specified during the Inspection that Ms. Z1 did not usually work for the Haute école (employer of the complainant), with which there is therefore no (yet) lasting relationship. This

situation can be explained, according to the Disciplinary Chamber, by the very specific circumstances of the case at hand, whereby the defendant, who claims to be exhausted by the multiple appeals and attacks from the complainant, found a solution by resorting to Ms. Z1;

- the defendant clarifies that the convention initially signed by Ms. Z1 was ratified by the administrator of the company SRL ABCD. The Disciplinary Chamber emphasizes in this regard that it is not competent to rule on potential forgery or other usurpation of function and that the defendant does not contest either the existence of this agreement or the fact that Ms. Z1 acted in execution of it;
- like the internal prevention advisors of the defendant, Ms. Z1 was bound by professional secrecy (Article 32 quinquiesdecies of the Well-being Act);

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- the defendant indicates that in order to guarantee this professional secrecy, Ms. Z1 and her associate, Mr. C., who is also implicated by the complainant and is the manager of the SRL, worked completely separately (separate offices, distinct computers, personal email address), with Ms. Z1 using an email address of the defendant when handling requests for psychosocial intervention. The complainant, for his part, does not provide tangible evidence of a violation of this secrecy.

58. In support of the above, the Disciplinary Chamber concludes that there exists a durable and valid agreement between the defendant and Ms. Z1 at the time of the facts, an agreement under which the opinion following the complainant's formal request for psychosocial intervention was rendered. The Disciplinary Chamber, not being competent to rule on forgery (usurpation of function, backdating of agreements), will not comment on these aspects. For the purposes of exercising its jurisdiction, it considers that the elements noted above sufficiently demonstrate the existence of a framework, compliant with the law, for the defendant's recourse, in this case, to an independent advisor.

59. Therefore, the Disciplinary Chamber decides that the defendant has not committed a violation of the principle of legality by resorting to an independent prevention advisor in the person of Ms. Z1. On the other hand, the communication of the complainant's data by the defendant to this independent prevention advisor could only be deemed compliant with Article 6.1. e) of the GDPR if only the data necessary for Ms. Z1's mission were communicated to her by the defendant.

II.3. Regarding the absence of response to the complainant's access request (Article 12 of the GDPR)

II.3.1. Position of the Inspection Service

60. According to its investigation report, the Inspection Service concludes that: "It also appears that the absence of response to the complainant's access request is likely due to the abundance of hostile messages sent by him to the SEPPT. The Inspection Service understands that by multiplying hostile messages to the SEPPT, the complainant has created the conditions that led to the absence of response to his request. As the saying goes, no one can benefit from their own wrongdoing" (page 18 of the Inspection Service report).

II.3.2. Position of the Parties

Position of the Complainant

61. The complainant denounces the absence of response from the defendant to his request dated October 13, 2021 (point 8). He emphasizes that the latter acknowledges this absence of response while attempting, in line with the Inspection Service's finding, to shift the responsibility onto his attitude. The

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The complainant refutes any abusive recourse to procedures in this regard. He highlights that he has won in 4 proceedings initiated since 2011 (in 2013, 2014, 2017, and 2021) that preceded the present action before the APD. He adds that other proceedings are indeed pending and that it is not for the defendant to substitute its assessment for that of the judges of the judiciary, the public prosecutor, the Commission of Psychologists, or the Dispute Chamber of the APD or any other body he may have seized.

62. The complainant also denounces that the defendant has deliberately refused to respond to his request.

Defendant's Position

63. The defendant acknowledges that it did not respond to the complainant's request of October 13,

2021. It invokes the abusive behavior of the latter, who multiplies unfounded accusations, gratuitous attacks, threats, and complaints against its staff in particular, as well as recourse to the courts. According to the defendant, the complainant is clearly seeking to harm it and is using his rights in a manner that contravenes the will of the legislator, whether in relation to legislation concerning the well-being of workers or in relation to the GDPR. Under these conditions, the defendant believes that the failure to respond, in isolation, to the email of October 13, 2021, from the complainant cannot be considered a culpable breach of Article 12 of the GDPR.

64. The defendant relies on the elements below to qualify the complainant's behavior as abusive, these various elements attesting, according to it, to his state of mind and his extremely litigious character:

- In September 2020, the complainant initiated an action against it before the French-speaking Court of First Instance of Brussels. In the context of this procedure, the defendant highlights the general behavior of the complainant who, at that date and over the course of 6 years, had initiated:
 - o 4 complaints with it in its capacity as SEPPT under the Well-being Law;
 - o 2 complaints against prevention advisors for psychosocial aspects working within it;
 - o 1 complaint against a social inspector for well-being at work;
 - o 2 legal proceedings, including the one in question against the defendant as well as another against the Higher Education Institution.
- On ... September 2021, a few days before his request of October 13, 2021, the complainant wrote to a prevention advisor that he intended to file a criminal complaint for forgery. His threat targets both Ms. Z1 and the other prevention advisors of the defendant, co-signers of the opinion rendered concerning him;
- On ... October 2021, a few days after making his request of October 13, 2021, the complainant filed a complaint against Ms. Z1 with the Commission of Psychologists;
- On ... January 2023, the complainant submitted a new formal request for harassment against 12 individuals to the defendant. This request is a 100-page document accompanied by 266 annexes;
- On ... February 2023, the complainant informed the defendant that he had filed a complaint with the public prosecutor for forgery against a prevention advisor of the defendant, co-signer of the opinion of August 2021 rendered concerning him;
- On ... February 2023, the complainant submitted a new request for intervention to the defendant against a 13th person (forgotten in his request of January 27, 2023, against 12 other individuals – see above);
- On ... February 2023, the complainant reproached prevention advisor P. for his partiality, dishonesty, and lack of integrity. He also mentioned having filed a complaint against the defendant with the Control of Well-being at Work (CBE) of the SPF ETCS;
- On ... March 2023, the complainant stated in an email to the Director of Risk Management of the defendant, allegations of alterations of the truth, collusion, etc.;
- On ... March 2023, the complainant informed the defendant's counsel that a complaint would be filed with the labor auditor against his client (i.e., the defendant) and against certain individuals linked to it for criminally punishable acts;
- On ... March 2023, the complainant intimidated prevention advisor P., threatening to file a complaint against him.

65. The defendant also refers to a letter dated April 29, 2021, in which the counsel of the French Community Commission of the Brussels-Capital Region (COCOF) orders the complainant to "refrain from sending all-around requests for positions regarding issues that are the subject of ongoing proceedings before the labor court, [before the defendant], Unia, the SPF Employment, Labor and Social Consultation [SPF ETCS], the public prosecutor, etc."

66. Finally, the defendant recalls that on October 14, 2021, it, through its delegated administrator, suspended its intervention regarding the complainant's psychosocial intervention requests on the grounds that, in light of the multiple complaints that the complainant had filed or intended to file against it (see above), it no longer had the required independence to carry out its mission (point 9).

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II.3.3. Assessment by the Dispute Chamber

Reminder of principles

67. Under Article 15.1 of the GDPR, the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed (1st aspect of the right of access).

68. When this is the case, the data subject has the right to obtain a series of information listed in Article 15.1 a) - h) and 15.2 of the GDPR relating to the processed data as well as access to it (2nd aspect of the right of access)³¹.

69. The GDPR provides in Article 15.3 that the data controller shall provide a copy of the personal data to the data subject. This obtaining of a copy is the main modality of granting access to the processed data.

70. The Dispute Chamber is of the opinion that, notwithstanding the absence of reference to Article 15 of the GDPR in the email of October 13, 2021, from the complainant, the request made by the latter to "know what data is held by the defendant and by Ms. Z1 as well as to receive a copy of it" constitutes a request for access within the meaning of Article 15 of the GDPR.

71. When receiving a request for the exercise of rights (here the right of access) from a data subject (here the complainant), the data controller (here the defendant) is always required to respond to the data subject:

- Either by providing information on the measures taken in response to their request as soon as possible and in any event within one month of receiving the request. If necessary, this period may be extended by two months, taking into account the complexity and number of requests. In this case, the data controller shall nonetheless inform the data subject of this extension and the reasons for the delay within one month of receiving the request (Article 12.3 of the GDPR).
- Or, if it considers that it should not respond to the request, including in support of Article 12.5 of the GDPR (see below on this point), by informing them without delay and at the latest

31 This includes: a) the purposes of the processing; b) the categories of personal data concerned; c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients established in third countries or international organizations; d) where possible, the envisaged duration of the retention of the personal data or, where that is not possible, the criteria used to determine that duration; e) the existence of the right to request from the data controller the rectification or erasure of personal data, or a restriction of processing of personal data concerning the data subject, or the right to object to such processing; f) the right to lodge a complaint with a supervisory authority; g) when the personal data are not collected from the data subject, any available information as to their source; h) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, useful information regarding the underlying logic, as well as the significance and the anticipated consequences of such processing for the data subject. Under Article 15.2 of the GDPR, the data subject also has the right to be informed of the appropriate safeguards under Article 46 in the event of the transfer of their data to a third country outside the European Economic Area (EEA) or to an international organization.

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within one month from the receipt of the request for the reasons for its inaction and the possibility of filing a complaint with a supervisory authority and of bringing a judicial remedy (Article 12.4 of the GDPR).

72.

Article 12.5 of the GDPR allows data controllers to refuse to respond to access requests that are manifestly unfounded or excessive³².

73.

These qualifiers must be interpreted restrictively, as the rights of data subjects must not be unduly compromised, and any exception must be interpreted and applied restrictively. The right of access is fundamental as it opens the door to the exercise of a series of other rights enshrined in the GDPR, such as rectification (Article 16 of the GDPR), erasure (Article 17 of the GDPR), or opposition (Article 21 of the GDPR). It also allows for a review of the lawfulness of the said data (see above). Without knowing what data concerning them is being processed, the data subject is unable to exercise these

rights.

74.

Furthermore, the data subject does not have to justify why they are requesting access to their personal data³³.

75.

In the Guidelines dedicated to the right of access³⁴, the European Data Protection Board (EDPB) clarifies what is meant by "unfounded" and "excessive" in the sense of Article 12.5 of the GDPR.

76.

According to the EDPB, a request for the right of access is manifestly unfounded if the requirements of Article 15 of the GDPR are "clearly not met when applying an objective approach." Given that there are very few prerequisites for the right of access, the cases in which a request may be deemed "unfounded" are very limited³⁵.

32 Article 12.5 of the GDPR states that "when requests from a data subject are manifestly unfounded or excessive, in particular due to their repetitive nature, the data controller may: (...) b) refuse to act on such requests. It is for the data controller to demonstrate the manifestly unfounded or excessive nature of the request."

33 See CJEU, judgment of October 26, 2023, FT, C-307/22, §§ 35-38. "38. It must be noted that neither the wording of Article 12, paragraph 5, of the GDPR nor that of Article 15, paragraphs 1 and 3, of this regulation conditions the provision, free of charge, of a first copy of personal data on the invocation, by these persons, of a reason justifying their requests. These provisions therefore do not give the data controller the possibility to require reasons for the access request made by the data subject." The CJEU further adds that the reasons for which the person wishes to access their data are not limited to those set out in recital 63 of the GDPR.

34 European Data Protection Board (EDPB), Guidelines 01/2022 on the rights of data subjects – right of access, March 28, 2023: https://www.edpb.europa.eu/system/files/2024-04/edpb_guidelines_202201_data_subject_rights_access_v2_fr.pdf

35 To make an access request, it is sufficient for the requesting individuals to specify that they wish to know the personal data concerning them that would be processed by the data controller. No formal requirement is imposed by the GDPR. General information requests are not to be considered as requests for personal data. For more details, see section 3 of the EDPB Guidelines on the right of access cited above.

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77.

Regarding the "excessive" nature of a request, this qualifier is not defined in the GDPR. The wording "in particular due to their repetitive nature" found in Article 12.5 of the GDPR allows us to conclude that one of the scenarios for applying this phrase in relation to a request for the exercise of the right of access (Article 15 of the GDPR) is linked to the number of access requests made by a data subject. Nevertheless, the use of "in particular" also shows that other reasons are not excluded a priori.

78.

Together with the EDPB, the Dispute Chamber considers that these "other reasons" particularly encompass cases of abusive recourse to Article 15 of the GDPR, that is to say, cases in which data subjects exercise their right of access solely for the purpose of causing harm to the data controller.

79.

In this context, the EDPB provides some examples of requests that should not be considered excessive:

- o the request is not substantiated by the data subject or the data controller considers that the request is nonsensical;
- o the data subject uses incorrect or impolite language;
- o the data subject intends to use the data to file new complaints against the data controller.

80. Conversely, a request may be deemed excessive according to the EDPB if, for example:

- o a person submits a request but simultaneously offers to withdraw it in exchange for, for example, another service from the data controller;
- o the request is intentionally malicious and serves to harass the data controller or its employees solely for the purpose of causing disruptions, for example due to the fact that:
 - the person has explicitly stated, in the request itself or in other communications, that they intend to cause disruptions and nothing else;
 - the person systematically sends different requests to a data controller as part of a campaign, for example once a week, with the intention and effect of causing disruptions to its services.

36 See, for example, the opinion of the Advocate General of the CJEU in case C-416/33, paragraph 49.

37 The EDPB refers by the expression "systematic sending as part of a campaign" to requests that could easily be merged into a single request but are artificially split into numerous requests by the data subject with the apparent intention of causing disruptions.

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81.

The Contentious Chamber concludes on this point that in order to invoke the option provided by Article 12.5 of the GDPR, the data controller must establish, in light of all relevant circumstances of the case at hand, the existence of an abusive approach by the data subject, namely an approach that aims not to obtain the protection of the rights conferred by the GDPR, but rather a different purpose, consisting of disrupting the proper functioning of the data controller³⁸, with the number of requests for the exercise of rights submitted by the data subject not being sufficient on its own. In other words, it is the responsibility of the data controller to demonstrate an intention on the part of the data subject to harm its proper functioning rather than to seek the protection of the rights granted to them by the GDPR. From this perspective, Article 12.5 of the GDPR reflects the consistent case law of the CJEU, according to which there exists, in Union law, a general legal principle under which litigants (here the data subjects) cannot fraudulently or abusively invoke the standards of the Union³⁹.

82.

Finally, data controllers must be able to demonstrate the manifestly unfounded or excessive nature of a request (Article 12.5, third sentence, of the GDPR) both with respect to the data subject and to the competent data protection authority. Consequently, each request must be examined on a case-by-case basis to determine whether it is manifestly unfounded or excessive, and the underlying facts must be duly documented.

83. As already mentioned, in the case of a manifestly unfounded or excessive request, the data controller may refuse to comply with the request. However, the application, where appropriate, of Article 12.5 of the GDPR does not exempt it from informing the data subject of its refusal in accordance with Article 12.4 of the GDPR (point 71)⁴⁰.

38 Conclusions of Advocate General J-R De La Tour of September 5, 2024, in Case C-416/2023, Österreichische Datenschutzbehörde v. F R, Federal Minister for Justice. The preliminary question posed by the CJEU in this case concerns the interpretation of Article 57.4 of the GDPR, which offers supervisory authorities, when faced with manifestly unfounded or excessive requests, due in particular to their repetitive nature, the possibility to require the payment of reasonable fees based on administrative costs or to refuse to comply with such requests. In his conclusions, the Advocate General explicitly states that "(...) a provision analogous to Article 57, paragraph 4, of this regulation is found in Article 12, paragraph 5, of the said regulation, which similarly grants, this time to the data controller when faced with requests that are manifestly unfounded or excessive, the possibility either to require the payment of reasonable fees that take into account the administrative costs incurred to provide the information, make communications or take the requested actions, or to refuse to comply

with such requests” (point 67) and that “insofar as Article 12, paragraph 5, and Article 57, paragraph 4, of the GDPR are drafted in an analogous manner and rest on the same logic, which is to avoid placing, as the case may be, on the data controller or on the supervisory authority, a disproportionate burden likely to hinder their proper functioning, [it is] of the opinion that these two provisions should receive the same interpretation” (point 69): ECLI:EU:C:2024:701.

39 Judgment of December 21, 2023, BMW Bank e.a. C 38/21, C 47/21 and C 232/21, EU:C:2023:1014, point 281 and the cited case law.

40 In the conclusions of the already cited Case C-416/2023, the Advocate General particularly emphasizes the obligation of motivation that rests on the author of the refusal, namely in this case on the data controller in the response it must formulate, even if based on Article 12.4 of the GDPR (point 89 *mutatis mutandis* of the Advocate General's conclusions).

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Application to the Case at Hand

84. The Contentious Chamber is of the opinion that the complainant's access request dated October 13, 2021, is not an *a priori* unfounded request.

85. Indeed, the complainant submitted his request concerning personal data relating to him processed by the defendant and by Ms. Z1. As indicated above (points 70, 74, and 76), these elements alone (i.e., the fact that his request pertains to personal data concerning him as the requester) are sufficient to authorize the complainant to submit an access request, which encompasses the right to a copy (Article 15.3 of the GDPR).

86. In light of the arguments raised by the defendant and finding 1 of the SI, the Contentious Chamber will examine in the following paragraphs whether the complainant's request was not "excessive" or whether, as highlighted by the SI in its investigation report, the complainant's attitude created conditions for an absence of a permissible response under the GDPR.

87. The Contentious Chamber notes that it emerges from the facts and documents in the parties' files that the complainant has made multiple requests for intervention from the defendant regarding psychosocial risks. In the context of processing his intervention requests, he has repeatedly targeted the defendant's prevention advisors, particularly before his request in February 2021, in which he submitted the access request of October 13, 2021. He has made numerous complaints or threats of criminal complaints against them, before the Commission of Psychologists concerning particularly Ms. Z1, or before the competent authorities of the SPF ETCS. It is also undisputed that the complainant has brought his disputes both with the defendant and with his employer before the courts of the judicial order.

88. Nevertheless, the Contentious Chamber is of the opinion that even in the particularly litigious and conflictual context described by the defendant, the exercise of the complainant's right of access was, for the reasons it develops below, not excessive within the meaning of Article 12.5 of the GDPR. Consequently, the defendant could not deprive the complainant of a response to his access request made under the GDPR.

89. The Contentious Chamber first notes that the complainant submitted his access request only once. Therefore, the request was not repetitive.

90. Was the complainant's access request, on the other hand, abusive? Was it made with the intent to harm the defendant? The Contentious Chamber is of the opinion that it cannot conclude that this was the case. For it is indeed the access request that must be excessive / abusive for the data controller to be exceptionally authorized to refuse to respond to it. In this case, the Contentious Chamber believes that it is not in a position to conclude that by requesting access to the data processed by the defendant and by Ms.

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Z1, in the context of his request for psychosocial intervention from February 2021, which resulted in an opinion concerning him, has, in light of the broader context, made use of his right of access with the aim of causing harm to the defendant. Personal data concerning him was undeniably processed by the latter and the independent advisor Z1 to whom the defendant had appealed. This was a request from the complainant following the data processing resulting from the request(s) for intervention regarding psychosocial risks that he had submitted to the defendant and which were processed by Ms. Z1. It is

therefore circumscribed and is not, for example, "chopped up," formulated in pieces in a way that would deliberately disrupt the defendant.

91. As evidenced by the overall content of the email dated October 13, 2021, the complainant's request is framed within a perspective of controlling the legality of the intervention by the defendant and the independent advisor Z1 to whom the former appealed, and could, indeed, given the conflictual context, be perceived as yet another attack from the complainant. Nevertheless, as recalled above, it is precisely one of the objectives of Article 15 of the GDPR to allow the data subject to control the legality of the processing of personal data processed by the data controller to which they request access. Even if the complainant's intention was to use the obtained data to potentially take action against the defendant for one reason or another based on a violation of the GDPR, the right of access could not be denied to him for this reason (see point 74 and the cited footnote). In any case, the complete lack of response from the defendant (see below) regarding Article 12.4 of the GDPR creates a breach of the GDPR on its part that the complainant can invoke against it (see below).

92. Validating the defendant's refusal to grant the complainant access to his data (and consequently depriving him of access to the data concerning him) by qualifying his request as abusive because he has multiplied requests and complaints to numerous bodies and/or regarding compliance with several distinct legislations would not be compliant with the GDPR. The act of bringing cases before courts and tribunals for non-compliance by his employer with legislation related to workplace well-being, the act of notifying the public prosecutor of facts he deems criminally reprehensible on the part of the defendant, the act of submitting multiple requests for intervention regarding psychosocial risks to the defendant, the act of attempting to challenge the qualifications and quality of Ms. Z1's work, as well as the act of denouncing the allegedly harassing, incompetent, or dishonest behavior of both his colleagues at the Higher Education Institution and the prevention advisors of the defendant are all procedures that certainly attest to the context in which

41 It should be noted that Article 15 of the GDPR does not require that the data subject has already confirmed that data concerning them is being processed. This confirmation is precisely the subject of paragraph 1 of Article 15. If, as in this case, the data subject (the complainant) already knows that data concerning them is being processed, they are all the more justified in requesting access to it.

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is recorded the complaint filed by the complainant. However, these are no less actions/procedures, some of which are also subsequent to the complainant's access request of October 13, 2021, distinct from a request for access within the meaning of Article 15 of the GDPR, which has not been demonstrated to have been made with the intent to harm. This context, as well as the outcome of these procedures, whether they rule in favor of or against the complainant, do not taint by extension the complainant's access request of October 13, 2021, as excessive within the meaning of Article 12.5 of the GDPR.

93. The Contentious Chamber therefore does not share the view of the SI that the defendant was justified in not responding to the complainant based on the adage "No one can invoke their own turpitude," since the complainant would have created the conditions for a lack of response to him (finding 1 of the SI - point 14). This Latin adage ("Nemo auditur propriam turpitudinem allegans") and cited as a general principle of law, indeed presupposes, in addition to the fact that it is generally accepted to have a relatively limited scope, a wrongful behavior on the part of the person to whom it is opposed.

94. However, in this case, the Contentious Chamber, in support of the reasoning above, has concluded that the complainant's behavior could not be deemed culpable as excessive in light of his access request. More specifically, the Contentious Chamber highlighted that the contextual elements reported by the defendant did not taint the access request of October 13, 2021, as excessive. The invocation of the adage is therefore not relevant in this case, and no repercussions on the complainant's right of access can be drawn from it.

95. In conclusion, the Contentious Chamber decides, in support of the above, that the defendant was not justified in relying on Article 12.5 of the GDPR to refuse to respond to the complainant's request. It does not demonstrate the excessive nature of the request of October 13, 2021, from the complainant and has committed a violation of Article 12.5 of the GDPR.

96. Even following the defendant's view that the complainant's access request would have been excessive, quod non, as the Contentious Chamber has just stated.

42 See in this regard the statement made by the defendant in its conclusions – point 64 above.

43 Judgment of the Court (Tenth Chamber, Extended) of January 20, 2021, Case T-758/18, ABLV Bank AS v. Single Resolution Board (SRB) ECLI:EU:T:2021:28, paragraph 170: "On the one hand, in order to invoke the adage *nemo auditur propriam turpitudinem allegans*, it must first be established that there is wrongful behavior attributable to the SRB. However, from the analysis of the first five pleas, it is clear that the SRB rightly applied Article 70(4) of Regulation No 806/2014 and Article 12(2) of Delegated Regulation 2015/63. No wrongful behavior can therefore be attributed to it in the present case": https://curia.europa.eu/juris/document/document_print.jsf?jsessionid=66529A70BB9B0435CE58F17BBBD5CBEB?docid=236703&text;=&dir;=&doclang;=FR&=1&occ;=first&mode;=DOC&pageIndex;=0&cid;=16022892

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to decide, it was incumbent upon the defendant in any case to notify its refusal to the complainant in accordance with the requirements of Article 12.4 of the GDPR.

97.

The Contentious Chamber notes that in this regard, the defendant refrained – which it also acknowledges – from any communication to the complainant in response to his email of October 13, 2021, containing, as required by said Article 12.4 of the GDPR, (1) the reason for its refusal to comply with his request, (2) information about his right to lodge a complaint with the Data Protection Authority (DPA), as well as (3) mention of the possibility of bringing a legal action. To the extent necessary, the Contentious Chamber specifies that the letter of October 14, 2021, sent by the defendant to the complainant, in which the defendant suspends any intervention regarding the complainant's psychosocial requests (point 9), does not equate to a response compliant with Article 12.4 of the GDPR as it does not contain the required elements. The defendant does not argue otherwise, as this email pursues a different objective, namely to terminate its intervention as a SEPPT. Article 12.4 of the GDPR has therefore been violated.

98. In support of the above, the Contentious Chamber decides that both the provisions of Article 12.5 and Article 12.4 of the GDPR have not been respected by the defendant regarding the complainant's access request.

II.4. Regarding the grievances concerning the violation of Articles 5.1. d) and 5.1. f) of the GDPR – incidental request of the complainant

II.4.1. Position of the SI and the parties

Position of the complainant

99. For the first time in his conclusions, the complainant introduces an incidental request for the violation of Articles 5.1. d) and 5.1. f) of the GDPR based on Article 809 of the Judicial Code.

100. In support of Article 5.1. d) of the GDPR, the complainant invokes several inaccuracies in the processing of his data and requests the Contentious Chamber to order the defendant and its legal advisors to rectify:

- a. the geolocation data indicating that on September 21, 2020, he was in the office of the management of the Higher Education Institution, [address];
- b. his status as an assistant professor in [...] and that he teaches [...] and [...] and not computer science;
- c. the fact that he had only filed two complaints against his hierarchy before January 1, 2021, and not a "multitude of complaints."

101. The complainant also denounces inaccuracies that would be contained in the opinion issued on his psychosocial intervention request, including his alleged refusal to meet with his management.

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102. In support of Article 5.1. f) of the GDPR, the complainant alleges that the defendant disclosed personal data concerning him to his employer, the Higher Education Institution, via its counsel, Master Z2. The complainant points out that the biases contained in the opinion co-signed by Ms. Z1 are

identical to those mentioned by Master Z2 in the context of the defendant's defense. According to the complainant, these same biases can only be explained by collusion between Ms. Z1 and Master Z2 and by the exchange of data between them and the defendant (points 30 and 31 of the complainant's conclusions). Under the heading "Alterations in the conclusions (read from the defendant) of August 23, 2023," the complainant also indicates that the defendant is abusively appealing to a third party with whom there is no valid contract, referring to the unlawful communication of data concerning him to Ms. Z1 (point 51 b. page 38 of the complainant's conclusions).

Position of the defendant

103. In its summary conclusions, the defendant concludes that the complainant's incidental request is inadmissible, as the framework of the procedure before the DPA is strictly defined and set out in the letter of June 27, 2023 (points 15-16). The defendant adds that, moreover, Article 809 of the Judicial Code is not applicable in this case, as the DPA (and its Contentious Chamber) does not fall under the judicial order and the procedural rules applicable to the present procedure are not set by the Judicial Code.

Position of the SI

104. To the extent necessary, the Contentious Chamber specifies that the complainant having introduced this request for the first time through conclusions, the SI, which is seized by the Contentious Chamber after the admissibility of the complaint and before the exchange of conclusions (see the procedural retroacts), has therefore not ruled on the alleged violation of Articles 5.1. d) and 5.1. f) of the GDPR.

II.4.2. Assessment of the Contentious Chamber

105. The Contentious Chamber notes that the complainant bases his request on Article 809 of the Judicial Code.

106. The Contentious Chamber recalls that the Judicial Code is, except in exceptional cases, not applicable to it.

107. In addition to the provisions provided by the LCA, the procedure before the Contentious Chamber is governed by the Internal Rules (RoI) of the DPA.

108. To the extent necessary, the Contentious Chamber specifies here - as it did in footnote 1 of this decision - that the provisions of the Law of December 3, 2017, establishing the Data Protection Authority (LCA) as amended by the

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The Law of July 30, 2018 (LTD) remains applicable to the present procedure. Indeed, the amendments made by the Law of December 25, 2023, amending the LCA, will only come into effect with respect to complaints filed as of the entry into force of the new provisions introduced by said law, namely on June 1, 2024. The complaint that led to the adoption of this decision was filed in February 2022, thus these new provisions are not applicable.

109. The same applies to the RoI, which has been amended following the changes made by the Law of December 25, 2023. The new RoI came into effect on June 1, 2024. It applies only to complaints, mediation files, requests, inspections, and procedures before the Contentious Chamber initiated from that date. Files initiated before June 1, 2024, as in this case, are subject to the provisions of the internal regulations (RoI) as they existed prior to that date.

110. The only references to the Judicial Code are made (1) to Article 108.2 of the LCA as applicable to the case at hand, which deals with the appeal procedure against the decisions of the Contentious Chamber before the Market Court, and (2) to Article 57 of the RoI as applicable to the case at hand, which concerns the calculation of deadlines within the procedure before the Contentious Chamber. No other application of a provision of the Judicial Code is provided for.

111. The complainant is therefore not entitled to invoke Article 809 of the Judicial Code in the context of the present procedure.

112. In this case, the Contentious Chamber, by letter dated June 27, 2023, also invited the parties to defend themselves regarding potential breaches of Articles 5.1. a), 6, and 12 of the GDPR without making any reference to Article 5.d) or Article 5.f) of the GDPR (points 15-16).

113. At no time, indeed, in the terms of his complaint form, did the complainant mention a request for rectification regarding personal data concerning him that he would consider erroneous (Article 5.1. d)

of the GDPR) nor raised an issue regarding the security of his data (Article 5.1. f) of the GDPR). His requests in this regard were formulated for the

44 Article 56 of the Law of December 25, 2023

Within three months of the entry into force of this law, the management committee shall submit to the House of Representatives, in accordance with Article 11, § 3, of the law of December 3, 2017, establishing the Data Protection Authority, a modified internal regulation. If the management committee is not complete at the time of the entry into force of this law, the modified internal regulation shall be submitted to the House of Representatives within three months from the day the management committee becomes complete.

The modified internal regulation applies only to complaints, mediation files, requests, inspections, and procedures before the contentious chamber that begin after the publication of the modified internal regulation in the Belgian Official Gazette. Complaints, mediation files, requests, inspections, and procedures before the contentious chamber that began before the publication of the modified internal regulation are governed by the rules that were applicable before the publication.

45 Article 108.2 of the LCA: "An appeal may be filed against the decisions of the contentious chamber under Articles 71 and 90 before the Market Court, which shall handle the matter according to the forms of summary proceedings in accordance with Articles 1035 to 1038, 1040, and 1041 of the Judicial Code."

46 Art. 57 of the Rol: "Regarding the calculation of deadlines, the provisions of 'Chapter VIII - Deadlines' of the Judicial Code shall apply by analogy."

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for the first time, as already mentioned, through its conclusions of September 12, 2023.

114. The SI has not examined these aspects that were not raised by the complaint and has not done so on its own initiative either.

115. The Contentious Chamber can indeed, in a limited manner, carry out certain investigations.

116. In this case, and in light of the above, it considers that it does not need to exercise this prerogative to adopt a reasoned decision regarding the grievances raised by the complaint filed by the complainant and adheres to the scope of its jurisdiction as defined by the letter of June 27, 2023.

117. Furthermore, the Contentious Chamber adds the following.

118. Article 5.1. d) of the GDPR provides that personal data must be "accurate and, where necessary, kept up to date; all reasonable measures must be taken to ensure that personal data that is inaccurate, in relation to the purposes for which it is processed, is erased or rectified without delay (accuracy)."

119. As a corollary of this principle to be respected and implemented by the data controller (Article 5.2. of the GDPR), the data subject has a right to rectification formulated as follows in Article 16 of the GDPR: "the data subject has the right to obtain from the controller, without undue delay, the rectification of inaccurate personal data concerning him or her."

120. It follows that a request for rectification must therefore be addressed to the data controller. If the latter fails to respond or wrongfully refuses to comply, a complaint may be filed with the APD.

121. The exercise of the right to rectification must, in order to be favorably addressed, concern inaccurate personal data. The Contentious Chamber recalls here that "subjective" personal data (such as evaluative data) are not, without questioning their qualification as personal data within the meaning of Article 4.1 of the GDPR, to be considered as erroneous within the meaning of Article 16 of the GDPR as long as the data subject does not share the opinion that they reveal, for example. This is different from "objectively erroneous" data, such as a misspelled name, an incorrect date of birth, etc.

122. Regarding the data contained in the disputed psychosocial notice, the Contentious Chamber does not have elements allowing it to conclude that these are erroneous. It also notes that the complainant has contested this notice before the Commission of Psychologists.

123. Regarding the geolocation data, the Contentious Chamber has no evidence to confirm or refute it.

124. Specifically concerning personal data processed by the defendant in the context of the defenses it develops in its conclusions submitted in this procedure, the Contentious Chamber emphasizes that the GDPR is not there to alter the statements made in the conclusions. The rights of the defense and the possibility to respond are the avenues through which it is appropriate to contest their possible

inaccuracy in the specific context of their processing as a defense means. This applies to both so-called "subjective" personal data and those that could be "objectifiable," such as in this case the exact number of proceedings initiated by the complainant or the subjects he actually teaches. The Contentious Chamber has also taken note of the arguments and evidence from both parties and is, in terms of the reasoning of its decision, free to follow the interpretation made or not. Even assuming that the Contentious Chamber orders the rectification of the data based on Article 100, 6° of the LCA, quod non, this injunction could only concern the processing of data carried out through the submitted conclusions, which would amount to modifying conclusions during the procedure, something the Contentious Chamber is not authorized to do. If these same personal data were or had been previously processed by the defendant, the Contentious Chamber does not have elements that would allow it to conclude that the defendant, with whom the exercise of rights must primarily be exercised, would not have or would not take them into account in the future.

125. Regarding the request based on Article 5.1. f) of the GDPR, the Contentious Chamber notes, still in an abundant manner, that it has no evidence attesting to any violation thereof. In the conclusions through which he introduces this grievance, the complainant indeed limits himself to speculating about an undue communication of personal data concerning him by the defendant (and/or by Ms. Z1 who is not a party to the case) to Mr. Z2, counsel for his employer, the Haute École, due to similar biases in their respective writings. The Contentious Chamber cannot find a violation of Article 5.1 f) of the GDPR based solely on these speculations and deductions. Regarding the communication of the complainant's personal data to Ms. Z1 by the defendant, the Contentious Chamber did not conclude that this was unlawful.

III. Regarding corrective measures and sanctions

126. Under Article 100.1 of the LCA, the Contentious Chamber has the power to:

1° dismiss the complaint without further action;

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2° order the dismissal;

3° pronounce a suspension of the ruling;

4° propose a settlement;

5° issue warnings or reprimands;

6° order compliance with the requests of the concerned party to exercise their rights;

7° order that the interested party be informed of the security issue;

8° order the freezing, limitation, or temporary or permanent prohibition of processing;

9° order compliance of the processing;

10° order the rectification, restriction, or deletion of data and notification of these to the data recipients;

11° order the withdrawal of the accreditation of certification bodies;

12° impose penalties;

13° impose administrative fines;

14° order the suspension of cross-border data flows to another State or an international organization;

15° forward the file to the Public Prosecutor of Brussels, who will inform it of the follow-up given to the file;

16° decide on a case-by-case basis to publish its decisions on the website of the Data Protection Authority.

127. Regarding the breaches of Article 12.4 and 12.5 of the GDPR that it has identified (Title II.3), the Contentious Chamber decides to issue a reprimand to the defendant for these breaches.

128. The Contentious Chamber believes that this is the appropriate, effective, and sufficiently deterrent sanction in light of the specific circumstances of the case, the complaint filed, the scope of the referral to the Contentious Chamber in this instance, and the grievances raised against the defendant.

129. Regarding the grievances based on the alleged violation of Articles 5.1. a) and 6 of the GDPR (Title II.2.) as well as Articles 5.1 d) and 5.1. f) of the GDPR (Title II.4.), the Contentious Chamber dismisses them without further action, each for technical reasons.

130. In matters of dismissal without further action, the Contentious Chamber is required to justify its decision step by step⁴⁹ and to:

49 Brussels Market Court (Court of Appeal of Brussels), September 2, 2020, judgment 2020/AR/329, p. 18.

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- pronounce a technical dismissal without further action if the file does not contain or does not contain sufficient elements likely to lead to a sanction or if it presents a technical obstacle preventing it from rendering a decision;

- or pronounce a discretionary dismissal without further action, if despite the presence of elements likely to lead to a sanction, the continuation of the examination of the file does not seem appropriate in light of the priorities of the Data Protection Authority (DPA) as specified and illustrated in its Policy on Dismissals without Further Action⁵⁰.

131. In the case of a dismissal without further action based on several grounds, these must be addressed in order of importance⁵¹.

132. Regarding the grievance based on the violation of Articles 5.1. a) and 6 of the GDPR, the Contentious Chamber decides to proceed with a technical dismissal without further action since it concluded in Title II.2. above that the defendant had not committed any breach of these articles of the GDPR due to the defendant's use of an independent prevention advisor.

133. Concerning the "late" grievances based on a potential violation of Articles 5.1 d) and 5.1. f) of the GDPR, the Contentious Chamber does not include them in this instance within the scope of its referral (see Title II.4) and thus also proceeds with a technical dismissal without further action regarding these grievances for this reason.

IV. Publication of the decision

IV.1. Position of the parties

Position of the complainant

134. In its conclusions, the complainant requests that the decision of the Contentious Chamber be published in a nominative manner, regardless of what it may be. Failing that, the decision should be published in an anonymized manner.

Position of the defendant

135. As for the defendant, it requests that if the decision were to find breaches on its part, it should not be published in light of its activities and image.

⁵⁰ In this regard, the Contentious Chamber refers to its policy on dismissals without further action as developed and published on the website of the Data Protection Authority: <https://www.autoriteprotectiondonnees.be/publications/politique-de-classement-sans-suite-de-la-chambre-contentieuse.pdf>.

⁵¹ See Title 3 – In what cases is my complaint likely to be dismissed without further action by the Contentious Chamber? from the policy on dismissals without further action of the Contentious Chamber.

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of the function of a SEPPT. If such a decision were to be published, the defendant requests that it be done in an anonymized manner (points 21-22).

IV.2. Assessment by the Contentious Chamber

136. Given the importance of transparency regarding the decision-making process of the Contentious Chamber, this decision is published on the website of the APD. However, it is not necessary for the identification data of the parties to be directly mentioned for this purpose.

137. The Contentious Chamber cannot grant the defendant's request not to publish this decision.

138. In accordance with its Publication Policy³⁸, the Contentious Chamber publishes each of its decisions with the aim of administrative transparency, which is required given both its missions as a data protection supervisory authority (Article 57.1. b) and d) read in conjunction with Article 51 of the GDPR) and its status as an administrative authority subject to the principles of good administration. It is in this capacity that this decision is published. In this regard, the Contentious Chamber ensures that the reasoning for its decision regarding the publication is included under the heading "Publication" and not under the heading "Regarding corrective measures and sanctions."

139. This publication also aims to give visibility to the work of the APD (role of informing and raising

awareness among businesses and citizens, including the press), work for which it must also report publicly (both to policymakers and to the general public). The independent administrative authority nature of the APD, as well as its extensive missions and powers, indeed justifies that it must publicly account for its activities and allow everyone to easily and transparently access its positions. Finally, one of the missions of the Contentious Chamber is also to establish consistent case law. To this end, and so that the interested public can appropriate it, it is essential that it publishes its decisions, including this one.

140. As highlighted in its aforementioned Policy, unlike the publication of the decision under the title of "sanction," the question of the identification of the parties is less important in the context of publication for transparency purposes as in this case. The sought objective can indeed be achieved whether the parties are identified or not. The Contentious Chamber nonetheless specifies that the publication of the identification data of legal entities is sometimes justified for reasons of public interest, due to the position of the data controller in society, the importance of the decision for the general public, or simply to allow for the understanding of the decision.